

		amendment of judgment to specify distribution to cy pres recipient].) Upon entry of the amended order of final approval and judgment, the Clerk will transmit a copy to the Judicial Council. Plaintiffs are ordered to give notice of this ruling to Defendants.
106	Barcenas vs. El Toro Meat Shop 2023-01351414	Final Accounting The settlement administrator, Phoenix Settlement Administration, has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiff has shown that the administrator's work is complete, the Court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendant.
107	VALDES IBANEZ vs. ANCHOR INTERNATIONAL SECURITY 2024-01385083	1. Case Management Conference 2. Motion for Leave to File Amended Complaint Plaintiff Francisco Alfonso Valdes Ibanez's motion for leave to file a second amended complaint ("SAC") is GRANTED. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.; <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) The Court continues the CMC to August 13, 2026 at 9:30AM in CX102. A joint CMC statement shall be filed 10 days in advance. 1. Procedural Requirements California Rules of Court (CRC), rule 3.1324 requires that a motion to amend include a copy of the proposed amendment or amended pleading; identify by page, paragraph, and line number any additions to and deletions from the prior pleading; and include a supporting declaration that specifies: (1) The effect of the amendment; (2) Why the amendment is necessary and proper;

- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.

(CRC, rule 3.1324(a), (b).)

Here, Defendants Lopez and Gallo contend that Plaintiff failed to identify by page, paragraph, and line number all additions to and deletions from the prior pleading because Plaintiff's brief and the text of the supporting declaration of Plaintiff's counsel flagged only the additions of paragraphs 11 and 12 and the change to plural "Defendants" instead of the singular "Defendant" throughout the complaint. But as Plaintiff points out, Plaintiff's counsel also submitted a redline that compares the SAC with the FAC and flags all the edits. The redline is sufficient to identify all the edits from the prior pleading.

Defendants Lopez and Gallo also contend that Plaintiff's moving papers failed to explain when the facts giving rise to the new allegations were discovered or why this request was not made earlier. The Court agrees that Plaintiff counsel's declaration attesting that the prior unauthorized filing of the SAC on 4/29/2025 as inadvertent does not explain when the new allegations in the SAC were discovered or why the request for amendment was not made *earlier*, only why the request for amendment was not made.

Nevertheless, these procedural deficiencies have not caused any prejudice to Defendants Lopez and Gallo. Accordingly, the Court excuses these procedural deficiencies in Plaintiff's moving papers but also admonishes Plaintiff's counsel to comply with all applicable rules and procedures moving forward.

2. Merits

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading" (Code Civ. Proc. [CCP], § 473, subd. (a)(1).) Further, "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, . . . may allow the amendment of any pleading" (CCP § 576.)

"[C]ourts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial," so long as "no prejudice is shown to the adverse party." (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [internal quotes and citations omitted].)

"The policy favoring amendment is so strong that it is a rare case

in which denial of leave to amend can be justified.” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.)

“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Super. Ct.* (1959) 172 Cal.App.2d 527, 530.) Indeed, “judicial policy favors resolution of all disputed matters in the same lawsuit,” and “it is irrelevant that new legal theories are introduced as long as the proposed amendments ‘relate to the same general set of facts.’” (*Kittredge Sports Co. v. Super. Ct.* (1989) 213 Cal.App.3d 1045, 1047-1048, quoting *Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 489.)

Leave to amend may be denied if the party seeking the amendment has been dilatory *and* the delay has prejudiced the opposing party. (*See Hirsa, supra*, 118 Cal.App.3d at p. 490.) Delay is most likely to result in prejudice warranting a denial of leave to amend “[w]here the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the only way to avoid prejudice to the opposing party is to continue the trial date to allow further discovery.” (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 488.)

But “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge, supra*, 213 Cal.App.3d at p. 1048.) “[W]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Atkinson, supra*, 109 Cal.App.4th at p. 761.)

Defendants Lopez and Gallo acknowledge that leave to amend should be liberally granted, and they also do not assert any prejudice resulting from Plaintiff’s delay in seeking leave to amend.

Defendants’ only concern is that Plaintiff’s motion requests that the Court “validate the Court’s previous acceptance of the SAC for filing.” Defendants request that if the Court grants Plaintiff leave to file the SAC, the Court does so only prospectively by ordering Plaintiff to re-file and re-serve the SAC after entry of the Court’s order, such that Defendants’ time to respond to the SAC runs from proper service of the re-filed SAC. Defendants also wish to ensure that their rights are reserved with respect to all pleading challenges and defenses.

		Plaintiff does not oppose Defendants' requests. In fact, Plaintiff's original moving memorandum of points and authorities concludes by requesting that the Court "retain the filing" of the SAC on 4/29/2025 "and/or to file the proposed Second Amended Complaint." (ROA #133, Mot. P&A at p. 7.) Indeed, on 11/13/2025, the Court already granted Defendants Lopez and Gallo's motion to strike Plaintiff's SAC filed on 4/29/2025 at ROA #102. (ROA #141.) Therefore, that SAC has already been stricken from the record, so there is no SAC currently on file in this case. Accordingly, in granting Plaintiff leave to file the SAC now, the Court ORDERS Plaintiff to separately file with the Court within 3 days of this ruling the proposed SAC attached to Plaintiff's counsel's declaration (ROA #133, Exh. B). The proposed SAC must be filed as a separate document to ensure it is properly indexed in the record. The Court also ORDERS Plaintiff to serve all defendants with the properly filed SAC within 30 days. Defendants' deadline to respond shall run from service of the properly filed SAC pursuant to this order. Plaintiff shall give notice.
108	Siguenza vs. 24 Carrots, LLC 2020-01160884	1. Case Management Conference 2. Motion to Strike MOTION OFF-CALENDAR PER STIPULATION; CMC CONTINUED TO 11/5/26 AT 9:30AM
109	Siguenza vs. 24 Carrots, LLC 2020-01168873	Case Management Conference CMC CONTINUED TO 11/5/26 AT 9:30AM